Office of Research Assurance

Human Subject Research Protections Standard Operating Procedures (SOP)

SOP - 420: Exempt Determination

Number	Effective Date	Version Number	Previous Version
420	20-Aug-2025	v.6.1	v.6

Purpose

SOP-420 defines the NASA IRB criteria and processes related to determining when the NASA IRB will use exempt procedures for review of research.

NASA is an official signatory of the Common Rule, codified at 14 CFR part 1230 and applies the Food and Drug Administration (FDA) regulations 21 CFR parts 50, 56, 312, 812 (as applicable) when projects involve activities regulated by the FDA.

The NASA IRB is responsible for reviewing submissions and making formal exempt determinations. Principal Investigators (PI) who intend to involve human research subjects **cannot** make the final determination of exemption. PI may not initiate research involving human subjects until the investigator has received written documentation of the exempt determination from the NASA IRB. Evaluation and determination of exempt status is based on regulatory criteria [14 CFR 1230.104(d)] and NASA policies and directives.

Policy

1. **Principal Investigators (PI) are not permitted to make independent determinations of exempt status.** A determination of exemption is made by a reviewer designated by NASA IRB Chair (or designee) based on regulatory criteria and NASA policies and directives. The determination is documented within the eIRB.

2. To be eligible for exempt review, the procedures must be minimal risk and the research must involve research activities in which the only involvement of human subjects falls within one or more of the 8 categories outlined in NASA 14 CFR 1230.104(d).

    a. Limited IRB Review to assess the adequacy of privacy and confidentiality provisions is conducted by an IRB Member when applicable.

3. The NASA IRB reserves the right to require expedited or full board review.

4. The NASA IRB Crew Office (CB) Representative reviews all studies that include interactions or data collection from astronauts.

5. The PI must provide an LSDA/LSAH documentation for retrospective HRP studies utilizing existing data collected from astronauts.

6. Exemption categories may apply to research involving pregnant women, human fetuses, and neonates. [45 CFR 46.201(b)]

7. Research that involves derivation and use of human embryonic stem cells, human embryonic germ cells, or human adult stem cells from any source, including somatic cell nuclear transplantation is not eligible for exempt review.

8. None of the exemption categories apply to research involving prisoners, except for research aimed at involving a broader subject population that only incidentally includes prisoners [45 CFR 46.104(b)(1)].

9. Exempt categories 1, 4, 5, 6, 7, and 8 may apply to research involving children. Exemption 2(i) and 2(ii) may only involve children when educational tests or the observation of public behavior when the investigator(s) do not participate in the activities being observed. Exemption 2(iii) and Exemption 3 may not be applied to research involving children. [14 CFR 1230.104(b)(3)].

Procedures

1. **New Studies**: PIs must request prospective review and determination of exemption from the NASA IRB through the eIRB prior to study implementation.
    a. A new study is created within the eIRB. The submission should include:
        i. Listing of **key personnel** engaged in human subjects research:
            1. All personnel engaged in human subjects research should have unexpired documentation of **human subjects training.**
                a. NASA policy requires training through Collaborative Institute Training Initiative (CITI). CITI training certificates are valid for 3 years.
            2. Attach a **Conflict of Interest (COI)** statement and **Conflict Management plan** (when appropriate) for all personnel.
                a. COI documentation must be updated when there are changes.
                    i. COI updates should be submitted through the eIRB through a Modification.

        ii. Attach the **Exempt Protocol template** outlining the study procedures.
            1. Copies of informed consent and recruitment materials are not required for exempt review by the NASA IRB; however, templates are available for adaptation and use by PI.

b. **Screening:** Upon receipt of the submission, the NASA IRB Office screens the application for completeness, accuracy, and concurrence with the proposed exemption.

c. **Crew Office Review:** IRB staff forward exempt studies that include interactions or data collection from astronauts for ancillary review by the NASA IRB Crew (CB) Representative.

d. **Designated Review:** The NASA IRB Office assigns a Designated Reviewer for the exempt review. When feasible, and not conflicted, the NASA IRB member from the PI's home center (i.e., ARC, LaRC, JSC, KSC) or designee is assigned.

   i. The Designated Reviewer may ask the NASA IRB Chair/designee or other qualified NASA IRB Member to assist with review.

   ii. Designated Reviewers who have a conflict of interest related to a submission, must inform the NASA IRB office staff of the conflict. Review will be assigned to another IRB Member.

   The Designated Reviewer may complete ORA – 421 – Worksheet: Exemption Determination. This worksheet may be uploaded into the eIRB under "Submit Designated Review" > "Supporting Documents."

   iii. The Designated Reviewer confirms that the research meets ethical principles and standards for protecting research subjects.

   iv. In reviewing the research, the Designated Reviewer considers the criteria for exemption outlined in 14 CFR 1230.104, applicable laws, NASA policies/directives, and center specific requirements, and confirms:

   - The research related risks to participants present no more than minimal risk
   - Participants' privacy interests are adequately protected
   - Plans to protect the confidentiality of private identifiable information are adequate

   v. When Limited IRB Review is required, the Designated Reviewer, who is a member of the IRB, may complete the Limited Review.

   vi. The Designated Reviewer may contact the PI for any clarification needed via "Request for Clarification" within the eIRB.

   vii. When satisfied, the Designated Reviewer submits the review through the eIRB system. See **Review** below.

e. **Post Review**: IRB staff finalizes study materials within the eIRB, prepares an Exempt Determination Letter, and distributes to PI/PI Proxy through the eIRB system.

2. Modification of Exempt studies:

a. **Studies involving astronauts:** All changes must be submitted to the IRB for review, as these may require review by the NASA IRB Crew Representative. A modification application should be submitted through the eIRB prior to implementation of changes.

b. **Studies involving International Partners (IP) or conducted on ISS:** All changes must be submitted for IRB review; with some requiring HRMRB review. A modification application should be submitted through the eIRB prior to implementation of changes.

    i. Note: IP agency ethical review of the proposed modifications is required for studies involving IP astronauts as participants.

c. **Studies with non-astronaut-participants only:** Minor changes to exempt research (i.e., those that clearly should not alter the exempt status of the research or impact risk) may be made without prior approval by the NASA IRB.

    Examples of **significant changes that require submission** to the NASA IRB include but are not limited to:

    i. Any change such that the revised procedures no longer fall within one or more of the exemption categories at 14 CFR 1230.104(d)

    ii. Adding a new subject population

    iii. Adding new procedures or analysis

    iv. Adding a new funding source

    v. Change in Principal Investigator or changes to study personnel

    vi. Disclosure of a new conflict of interest

    vii. Adding questions to an interview or survey about sensitive aspects of the participants' behavior that may place subject at criminal, civil liability, financial, employability, and/or reputational risk – such as illegal conduct, drug/alcohol use, sexual behavior, HIV status, suicide ideation/depression.

    Examples of minor changes that do not require submission to the NASA IRB include but are not limited to:

    i. Editorial or administrative revisions to consent documents or other study documents

    ii. Adding non-sensitive questions to a survey or interview or revising current questions

    iii. Adding a new recruitment material

    iv. Increasing or decreasing the number of participants, unless adding a new participant population

d. **COI and CITI record updates:** PI are responsible for maintaining up-to-date documentation in the eIRB during the time that the study remains active.

These administrative updates may be submitted to the eIRB via the Modification process.

i. COI documentation must be updated when there are changes to COI.

ii. CITI human subjects training certificates must have a valid expiration date within 3 years of the course date.

e. **MOD submission:** PI initiate review of an Exempt Modification in the eIRB through creation of a Modification of the study. Select “Modification / Update” and identify the scope of the modification.

f. **MOD Screening:** Upon receipt of the **MOD** submission, the NASA IRB Office screens the application for completeness, accuracy, and confirms that the proposed modifications do not alter the prior exempt determination.

g. **MOD Crew Office Review:** Proposed modifications that include interaction/data collection from astronauts that is substantively different from, or that has not been previously reviewed by the Crew Office, is forwarded to the NASA IRB Crew Representative for ancillary review.

h. **MOD Designated Review:** The NASA IRB Office assigns a Designated Reviewer for the exempt review. When feasible, and not conflicted, the NASA IRB member from the PI’s home center (i.e., ARC, LaRC, JSC, KSC) or designee is assigned.

i. The Designated Reviewer may ask the NASA IRB Chair/designee or other qualified NASA IRB Member to assist with review.

ii. Designated Reviewers who have a conflict of interest related to a submission, must inform the NASA IRB office staff of the conflict. Review will be assigned to another IRB Member.

iii. The Designated Reviewer may complete ORA – 421 – Worksheet: Exemption Determination. This worksheet may be uploaded into the eIRB under “Submit Designated Review” > “Supporting Documents.”

iv. The Designated Reviewer ensures that the research meets ethical principles and standards for protecting research subjects and confirms that the study remains eligible for an Exempt determination and submits the review through the eIRB system.

i. **Post Review**: IRB staff finalize study materials within the eIRB, prepares an Exempt Determination Letter, and distributes to PI/PI Proxy through the eIRB system.

3. Informed Consent for Exempt studies

a. **Domestic exempt studies, conducted by U.S. PI, involving U.S. subjects only:**

i. While U.S. regulations do not require IRB review of Informed Consent forms for research under exempt review, the NASA IRB expects that an

informed consent process is in place for prospective studies involving interaction or intervention with participants.

This consent process should include, at minimum:

a. a statement that the project involves research
b. a general description of study procedures and time commitment
c. any potential discomfort or risk related to participation (e.g., discomfort responding to sensitive or personal questions, privacy concerns, disclosure risks)
d. Indication that participation is voluntary and that they may skip any questions they do not feel comfortable answering in an interview or survey
e. how their privacy and confidentiality will be protected
f. an outline of plans for data-sharing or future research use of their information.

When applicable, PIs should also describe:

a. any use of information about participants obtained from records (e.g., medical information, data from a prior study)
b. plans to audio/video record or photograph participants and how recordings/images will be used and retained
c. information about participants' use of software or apps, including any privacy issues, incurred costs, etc.
d. any plans for capturing information via screen-recording, key-stroke-logging, etc.
e. If deception about the purpose or nature of the study is planned, prospective participants must be informed that they will be unaware of, or misled about, the nature or purposes of the research, and agree to proceed.
f. As with nonexempt research, the decision to participate in a research study belongs entirely to the potential participant. This choice must be voluntary and free from any undue influence – real or perceived. If a study necessitates inclusion of persons in subordinate positions PIs should take steps to ensure that individuals do not experience (or perceive) pressure to participate. Inclusion of language within the informed consent (for example, explaining that the decision to participate will not impact a course grade or their relationship with the PI) may be one way to address and mitigate this concern.

PI are responsible for ensuring that any non-IRB permissions or agreements are obtained and documented as required.

b. **Exempt studies involving International Partners (IP) as PI or subjects, and/or studies conducted on ISS with astronaut subjects:**

i. Use of the Human Research Multilateral Review Board (HRMRB) consent form template is required.

ii. **Studies that intend to enroll US astronauts** should add the following language to the HRMRB consent form under the "About this Research" heading:

"NOTE FOR US CREW ONLY: The NASA IRB has determined the proposed project is considered Exempt human subjects research [14 CFR 1230.104(d)]. NASA 14 CFR 1230 regulations have not been applied."

4. **Exempt Review outcomes**. The Designated Reviewer selects from the following review options:
   a. **Not Human Subjects Research**: If the reviewer determines that the project does not meet the definition of "research" or does not involve "human subjects" the PI receives a determination letter that the research is "Not Human Research" (See ORA – SOP - 405).

   b. **Not Engaged in Human Subjects Research**: If the reviewer determines that NASA is not "engaged" in a human subjects research protocol during the pre-review, the PI receives a determination letter that the research is "Human Research, Not Engaged."

   c. **Determination of Exemption**: The reviewer determines that the protocol qualifies under one or more of the exemption categories; the project is determined Exempt from IRB review with no changes required. An Exempt Determination notice is issued via the eIRB which specifies the exemption categories.

   d. **Additional Information needed to determine Exempt status**: The reviewer communicates requests for additional information to the investigator via a Request for Clarification in the eIRB. Upon receipt of the additional information, the reviewer determines whether the research activities qualify under one or more of the exemption categories.

   e. **Referred for IRB Review**: If the reviewer determines that the project is not exempt the PI is notified via the eIRB. The reviewer refers the protocol for either expedited or full committee review. PI should submit a full protocol, consent documents, and materials for review.

5. **Limited IRB Review**: Limited IRB review is increased oversight by the IRB for certain exempt categories to ensure that either:

a. The identifiable private information or biospecimens collected have the appropriate data security and privacy protections in place to reduce the change of inappropriate disclosure.
    - The NASA IRB will assess whether the data collected as part of the proposed study require increased protection based on the following: The extent to which identifiable private information is or has been de-identified and the risk that such de-identified information can be re-identified.
    - The use of the information.
    - The extent to which the information will be shared or transferred to a third party or otherwise disclosed or released.
    - The retention period or life of the information.
    - The security controls that are in place to protect the confidentiality and integrity of the information; and
    - The potential risk of harm to individuals should the information be lost, stolen, compromised, or otherwise used in a way contrary to the contours of the research under the exemption LSDA/LSAH may be consulted for guidance on the identifiability of data.

    OR

b. Broad consent (or equivalent) was obtained for the use of stored identifiable data or biospecimens.

6. **Recordkeeping**
    a. NASA IRB responsibilities:
        - The NASA IRB maintains records of all exemption determinations in the eIRB.

    b. PI responsibilities:
        - Maintain records of exempt documents and correspondence (i.e., eIRB application, funding proposal, screening, recruitment and consent documents, data collection materials and instruments, documentation of participant eligibility and participation).
        - Retain study records (including signed consent forms, when applicable) for three years following study closure and according to any sponsor requirements. Records of applications submitted in eIRB maintained in electronic eIRB archives remain accessible to the PI after study closure.
        - Make all research records accessible for review by authorized NASA IRB representatives and/or the department or agency supporting or conducting the research to ensure proper performance of the study and compliance with federal regulations and institutional policies.
        - Maintain confidentiality of stored records in accordance with NASA Privacy policy.

Definitions

Human Subject – a living individual about whom an investigator is conducting research [14 CFR 1230.102(e)(1)]

i) obtains information or biospecimens through intervention or interaction with the individual and uses, studies, or analyzes the information or biospecimens; or

ii) obtains, uses, studies, analyzes, or generates identifiable private information or biospecimens.

Key Personnel – individuals involved in the design, conduct, and/or reporting of human subjects research. Generally, individuals involved the consent process, those who interact/intervene with human research participants; and/or have access to private and identifiable data are considered engaged in human subjects research and should be included as study personnel on the IRB application.

Minimal Risk -- the probability and magnitude of harm or discomfort anticipated in the research are not greater in and of themselves than those ordinarily encountered in daily life or during the performance of routine physical or psychological examinations or tests. [14 CFR 1230.102(j)]

Research – a systematic investigation, including research development, testing, and evaluation, designed to develop or contribute to generalizable knowledge. [14 CFR 1230.102(l)]

Acronyms

FDA – US Food and Drug Administration
HHS – US Department of Health and Human Services
HRMRB – Human Research Multilateral Review Board
HRP – Human Research Protections
HSR – Human Subjects Research
IRB – Institutional Review Board
LSAH – Lifetime Surveillance of Astronaut Health
LSDA – Life Sciences Data Archive
NASA – National Aeronautics and Space Administration
ORA – NASA Office of Research Assurance
PI – Principal Investigator
NHSR – Not Human Subjects Research

References

NASA

NASA 14 CFR 1230.102
NASA 14 CFR 1230.104
NPR 7100
NASA NPD 7100

HHS

HHS 45 CFR 46.104
HHS 45 CFR 46.201

FDA Regulations

21 CFR 50.3(c)(g)
21 CFR 56.103(c)
21 CFR 312.3(b)
21 CFR 812.3(h)(p)

Version #	Version Notes:	Originated By:	Approved By:	Date Approved:
v.6.1	Formatting updates, fix broken links	J. Green/J. Kissling	M. Covington	20Aug2025
v.6	Minor revisions to processes, formatting updates, reference updates	K. Ntow	M. Covington	28July2025
v.5	Removed reference to 45 CFR 46, removed “minimal risk” requirement, formatting updates,	J. Ensley Gorshe	M. Covington	14Aug2023
v.4	Major revisions to interpretations, definitions, processes	J. Ensley Gorshe	M. Covington	22Aug2022
v.2 -v.3	Revised	J. Kisenwether	M. Covington	28April2021
v.1	Original	J. Christensen/J. Kisenwether	M. Covington	08Nov2020